

# SENATE . . . . . No. 1082

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## The Commonwealth of Massachusetts

PRESENTED BY:

*James B. Eldridge*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the effective enforcement of municipal ordinances and by-laws.

PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:              |                  |
|--------------------------|--------------------------------|------------------|
| <i>James B. Eldridge</i> | <i>Middlesex and Worcester</i> |                  |
| <i>Michael O. Moore</i>  | <i>Second Worcester</i>        | <i>2/11/2025</i> |
| <i>James K. Hawkins</i>  | <i>2nd Bristol</i>             | <i>2/11/2025</i> |
| <i>Vanna Howard</i>      | <i>17th Middlesex</i>          | <i>2/27/2025</i> |
| <i>Adam J. Scanlon</i>   | <i>14th Bristol</i>            | <i>3/24/2025</i> |

# SENATE . . . . . No. 1082

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By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 1082) of James B. Eldridge, Michael O. Moore, James K. Hawkins and Vanna Howard for legislation relative to the effective enforcement of municipal ordinances and by-laws. The Judiciary.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 1295 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to the effective enforcement of municipal ordinances and by-laws.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 21D of chapter 40 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by striking out, in line 46, the words “three hundred dollars”  
3   and inserting in place thereof the following figure:- \$1,000.

4           SECTION 2. Said section 21D of said chapter 40, as so appearing, is hereby further  
5   amended by adding the following paragraph:-

6           Notwithstanding this section or any other general or special law to the contrary, in any  
7   suit in equity brought in the superior court, district court or the land court by a city or town, or a  
8   municipal agency, officer, board or commission having enforcement powers on behalf of the city  
9   or town, to enforce an ordinance or by-law, or a rule, regulation or order described in this

10 section, the court, upon a finding that the violation occurred, may assess a civil penalty in  
11 accordance with this section and section 21, and reasonable attorneys fees and costs. Civil  
12 penalties assessed under this paragraph shall be in addition to any equitable relief ordered by the  
13 court and shall be paid to the city or town for use as the city or town may determine. In assessing  
14 a penalty under this paragraph, the court shall consider: (1) whether the violation was willful or  
15 negligent; (2) the harm to the public health, safety or environment resulting from the violation;  
16 (3) the economic benefit gained by the defendant as a result of the violation; (4) the cost to the  
17 city or town resulting from the violation; (5) the history of noncompliance by the defendant; and  
18 (6) whether the defendant made good faith efforts to cure or cease the violation of the ordinance  
19 or by-law after the first notice by the city or town of such violation.